Rule of Law The concept of 'equality before law' is an element of the concept of 'Rule of Law', propounded by A.V. Dicey, the British jurist. His concept has the following three elements or aspects:

1. Absence of arbitrary power, that is, no man can be punished except for a breach of law.

2. Equality before the law, that is, equal subjection of all citizens (rich or poor, high or low, official or non-official) to the ordinary law of the land administered by the ordinary law courts[3].

3. The primacy of the rights of the individual, that is, the constitution is the result of the rights of the individual as defined and enforced by the courts of law rather than the constitution being the source of the individual rights.

The first and the second elements are applicable to the Indian System and not the third one. In the Indian System, the constitution is the source of the individual rights.

The Supreme Court held that the 'Rule of Law' as embodied in Article 14 is a 'basic feature' of the constitution. Hence, it cannot be destroyed even by an amendment.

Exceptions to Equality The rule of equality before law is not absolute and there are constitutional and other exceptions to it. These are mentioned below:

1. The President of India and the Governor of States enjoy the following immunities (Article 361):

    1. The President or the Governor is not answerable to any court for the exercise and performance of the powers and duties of his/her office.

    2. No criminal proceedings shall be instituted or continued against the President or the Governor in any court during his/her term of office.

    3. No process for the arrest or imprisonment of the President or the Governor shall be issued from any court during his/her term of office.

    4. No civil proceedings against the President or the Governor shall be instituted during his/her term of office in any court in respect of any act done by him/her in his/her personal capacity, whether before or after he/she entered upon his/her office, until the expiration of two months next after notice has been delivered to him/her.

2. No person shall be liable to any civil or criminal proceedings in any court in respect of the publication in a newspaper (or by radio or television) of a substantially true report of any proceedings of either House of Parliament or either House of the Legislature of a State (Article 361-A).

3. No member of Parliament shall be liable to any proceedings in any court in respect of anything said or any vote given by him/her in Parliament or any committee thereof (Article 105).

4. No member of the Legislature of a state shall be liable to any proceedings in any court in respect of anything said or any vote given by him/her in the Legislature or any committee thereof (Article 194).

5. Article 31-C is an exception to Article 14. It provides that the laws made by the state for implementing the Directive Principles contained in clause (b) or clause (c) of Article 39 cannot be